

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 13  
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk  
191 North First Street, San Jose, CA 95113  
Telephone: 408-882-2240

**DATE: October 31, 2025**

**TIME: 9:00**

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856  
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing  
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be  
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

| LINE #                 | CASE #     | CASE TITLE                                        | RULING                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|------------------------|------------|---------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 1</a> | 24CV447038 | WELLS FARGO BANK, N.A. vs<br>DOUGLAS HERRERA      | Motion: Judgment on Pleadings<br><br>Plaintiff has submitted a request for dismissal of all claims without prejudice. The Court expects this request to be processed in short order. As such, the motion is MOOT and the matter is OFF CALENDAR.                                                                                                                                                                                                             |
| <a href="#">LINE 2</a> | 24CV432543 | Roziland Blue vs Second Harvest of Silicon Valley | Motion: Compel IME<br><br>Ctrl Click (or scroll down) on Line 2 for tentative ruling.                                                                                                                                                                                                                                                                                                                                                                        |
| <a href="#">LINE 3</a> | 24CV447650 | WELLS FARGO BANK, N.A. vs CONRAD SOLAREZ          | Motion: Admissions Deemed Admitted<br><br>Plaintiff's unopposed motion is GRANTED. "[T]he failure to file an opposition creates an inference that the motion ... is meritorious." ( <i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410.). Those matters specified in Plaintiff's Request for Admissions are deemed admitted and/or documents deemed genuine.<br><br>Plaintiff to prepare the final order within 10 days of the date of the hearing. |
| <a href="#">LINE 4</a> | 25CV462300 | Kennon Hudson vs Richard Gorini et al             | Motion: Compel Further Responses<br><br>Ctrl Click (or scroll down) on Line 4 for tentative ruling.                                                                                                                                                                                                                                                                                                                                                          |

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|------------------------|------------|------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 5</a> | 21CV377708 | Gerardo Vasquez vs General Motors, LLC               | Motion: Attorney's Fees & Costs<br><br>Ctrl Click (or scroll down) on Line 5 for tentative ruling.                                                                                                                                                                                                                                                                  |
| <a href="#">LINE 6</a> | 22CV403247 | Jim Zubillaga et al vs Poco Solar Energy, Inc. et al | Motion: Leave to File Amended Complaint<br><br>Plaintiffs' unopposed motion is GRANTED. "[T]he failure to file an opposition creates an inference that the motion ... is meritorious." ( <i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410.)<br><br>Plaintiffs shall serve and file the First Amended Complaint within 5 days of the date of the hearing. |